guilty.

But in the sleepless days after that sleepless night, some dim suspicion still stirred in my mind. Long after I gave my China briefing, I couldn't help but keep digging around.

★ ★ ★

AT THE START of my employment with the NSA, in 2009, I was only slightly more knowledgeable about its practices than the rest of the world. From journalists' reports, I was aware of the agency's myriad surveillance initiatives authorized by President George W. Bush in the immediate aftermath of 9/11. In particular, I knew about its most publicly contested initiative, the warrantless wiretapping component of the President's Surveillance Program (PSP), which had been disclosed by the *New York Times* in 2005 thanks to the courage of a few NSA and Department of Justice whistleblowers.

Officially speaking, the PSP was an "executive order," essentially a set of instructions set down by the American president that the government has to consider the equal of public law—even if they're just scribbled secretly on a napkin. The PSP empowered the NSA to collect telephone and Internet communications between the United States and abroad. Notably, the PSP allowed the NSA to do this without having to obtain a special warrant from a Foreign Intelligence Surveillance Court, a secret federal court established in 1978 to oversee IC requests for surveillance warrants after the agencies were caught domestically spying on the anti–Vietnam War and civil rights movements.

Following the outcry that attended the *Times* revelations, and American Civil Liberties Union challenges to the constitutionality of the PSP in non-secret, regular courts, the Bush administration claimed to have let the program expire in 2007. But the expiration turned out to be a farce. Congress spent the last two years of the Bush administration passing legislation that retroactively legalized the PSP. It also retroactively immunized from prosecution the telecoms and Internet service providers that had participated in it. This legislation—the Protect America Act of 2007 and the FISA Amendments Act of 2008—employed intentionally misleading language to reassure US citizens that their communications were not being explicitly targeted, even as it effectively extended the PSP's remit. In addition to collecting inbound communications coming from foreign countries, the NSA now also had policy approval for the warrantless collection of outbound telephone and Internet communications